



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9169 (EXTENSION)
ORIGINAL September 12, 1984
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9169 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to March 31, 1995. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Dist: PHWA USCG

EXEMPTION HOLDER

APPLICATION DATE

Pasminco Incorporated
Torrance, CA

March 11, 1993



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DOT-E 9169
(CORRECTED COPY)

1. Pacific Smelting Company, Torrance, California, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a flammable solid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transportation of a water reactive material in vented freight shipping containers, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of party to this exemption:

Hugo Neu & Sons, Inc. and Hugo Neu & Sons Internat'l Sales Corp.,
New York, N.Y. - PTE-1.

Isaac Cohen and Son, Inc., Ontario, Ca. - PTE-2.

2. BASIS. This exemption is based on an application from Pacific Smelting Company dated October 26, 1983, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon; supplemented by letter dated March 6, 1984. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon.

Hugo Neu & Sons, Inc. application dated March 19, 1984.

Isaac Cohen & Son, Inc. application dated April 30, 1984.

3. HAZARDOUS MATERIALS (Descriptor and class). Zinc die cast skimmings, zinc ashes, or zinc residues, classed as flammable solid.

4. PROPER SHIPPING NAME (49 CFR 172.101). Water reactive solid, n.o.s. or zinc ashes, as appropriate.

5. REGULATION AFFECTED. 49 CFR 173.154.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle, cargo vessel.

7. SAFETY CONTROL MEASURES. Packaging prescribed is freight shipping container 20' X 8' X 8' with approximately 20 one-quarter inch vent holes in four places near the top corners. The holes must be protected from the weather by cover plates. The freight container must be similar to that shown in Appendix D to the application.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each vessel, motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire, or accident.

c. After the zinc skimmings or zinc ashes have been loaded in the container, the doors must be left open until it has been determined that the temperature near the geometrical center of the load does not exceed 110°F.

d. The loaded container may not be offered for transportation until it has been determined that the hydrogen concentration in the space above the zinc skimmings or zinc ashes does not exceed 0.4% after the container doors have been closed for 12 hours.

e. The freight container must be placarded on all four sides with both the FLAMMABLE SOLID and the DANGEROUS WHEN WET placards.

f. The freight containers shipped under this exemption must be stowed on deck only.

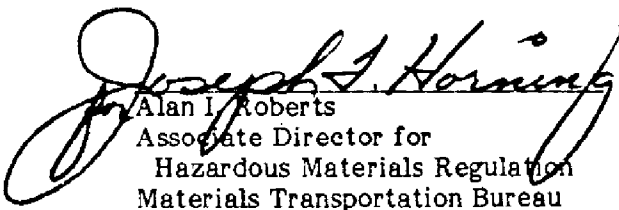
g. The shipper must provide any transportation company involved in carrying the zinc skimmings or zinc ashes with a copy of the letter (APPENDIX L-1) and the Material Safety Data Sheet (APPENDIX M-1) included in the application for exemption.

h. This exemption does not apply to operations beyond the jurisdiction of the United States of America.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. November 30, 1985.

Issued at Washington, D.C.:


for Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

Dist: FHWA, USCG

SEP 12 1984

(DATE)